

USNCC CONSORTIUM AGREEMENT

1. ESTABLISHMENT AND BACKGROUND.

The Department of the Navy formally established the United States Naval Community College (USNCC) in 2020 and in December 2021, with the signing of the National Defense Authorization Act (NDAA), the USNCC received formal authority with conditional degree-granting authority (dependent on achieving accreditation) from Congress. The USNCC achieved Candidate for Accreditation status from the Middle States Commission on Higher Education (MSCHE) in November 2024 and is working towards full accreditation (targeted Spring 2027). The USNCC seeks to form an educational association via bilateral agreements between the USNCC and select private and public nonprofit higher education institutions that offer accredited undergraduate education programs. The USNCC increases educational opportunities for enlisted Sailors, Marines, and Coast Guard personnel by providing curriculum designed to meet the needs of the naval services asynchronously, online, through a consortium of schools. Operating through a consortium model enables the USNCC to provide operationally relevant education for the maritime forces that is readily accessible, scalable, and fully transferable to four-year academic institutions of higher education.

2. PURPOSE.

The purpose of this bilateral Consortium Agreement (hereafter "Consortium Agreement" or "Agreement") between the partner school, XXXX (hereafter "Partner Institution"), and the United States Naval Community College (hereafter "USNCC") is to establish an operational model to provide high quality, naval relevant associate degree programs and certificates in consortium with select accredited higher education colleges by the most efficient and economically responsible means. This Consortium Agreement will formalize the agreement among signatories for programs in which the Partner Institution and/or the USNCC is the degree grantor.

2.1. Through this Agreement, the USNCC will partner with institutions that serve as the primary degree-granting entities for the associate degrees and certificates described in the attached program plans. The Partner Institution agrees to recognize USNCC courses through an articulation agreement, which will include, but is not limited to, the transfer of USNCC-taught courses and the awarding of transcript credit for prior learning (including American Council on Education (ACE) credit recommendations), as mutually approved by both parties. The Partner Institution will support USNCC by providing the academic and administrative services specified in this Agreement and will be responsible for any necessary teach-out of students who become ineligible to participate in USNCC, in accordance with the Partner Institution's eligibility requirements and applicable academic policies.

2.2. This agreement will further incorporate articulation agreements for programs in which USNCC serves as the primary grantor of the associate degree and the Partner Institution provides General Education courses, Concentration courses, or an embedded or stand-alone Professional Certificate. Upon achieving full accreditation, USNCC intends to establish an Associate of Naval Studies/Sciences and will develop corresponding articulation agreements. These addendums will specify which credits are accepted toward the USNCC program and, where appropriate, will include teach-out provisions at the Partner Institution.

3. DEFINITIONS

3.1. Academic Policy: The written policies, procedures, and standards governing academic matters at each institution, including but not limited to admission requirements, academic progress standards, grading policies, and graduation requirements.

3.2. Addendum: An item of additional material added at the end of the Consortium Agreement, typically in order to correct, clarify, or supplement something.

3.3 Articulation Agreement: A documented pathway for transfer credit between the USNCC and Partner Institution that also lays out necessary admissions and other related academic policies.

3.4. Associate of Naval Studies/Sciences: A USNCC-led program whereby the USNCC delivers the majority of the education through the direct delivery of courses and awarding of credit for military training. The USNCC will articulate in courses from Partner Institutions and may arrange for a “teach-out” by the Partner Institution.

3.5 Attachment: Supplementary document containing details, terms, specs, or lists that are physically added to or referenced within the main Consortium agreement.

3.6. Business Day: Any day other than a Saturday, Sunday, or federal holiday.

3.7. Concentration Focused: A designation meant to refer to the programs offered in a concentration area (e.g., Nuclear Engineering, Cyber Security, Data Analytics) as opposed to a more general pathway offered by USNCC such as Associate in Naval Studies or Sciences.

3.8. Consortium Program: A degree or Professional Certificate program that is jointly agreed upon between the USNCC and Partner Institution with the intent of sharing responsibilities to teach classes, educate and support students.

3.9. Consortium Program Plan: A detailed outline of the program, the specific courses required for degree and/or Professional Certificate completion, and bachelor degree pathway(s).

3.10. Evaluated Education Plan: An individualized official academic document provided by the educational institution that:

3.10.1 articulates all degree requirements for degree completion, or in the case of a non-degree program, all educational requirements for completion of the program;

3.10.2 identifies all courses required for graduation in the individual's intended academic discipline and level of postsecondary study; and

3.10.3 includes an evaluation of all successfully completed coursework, and evaluated credit for military training and experience, and other credit sources applied to the

institutional degree requirements.

3.10.4 The Evaluated Education Plan is also known, for example, as a degree audit, military degree plan, academic advisory report (AAR).

3.11. Force Majeure Event: Any circumstance not within the reasonable control of the affected party, including but not limited to acts of God, war, terrorism, pandemic, epidemic, government action, or widespread technological failure.

3.12. Funding Contract: The Indefinite Delivery Indefinite Quantity (IDIQ) contract (or similar vehicle) between USNCC and Partner Institutions which establishes separate terms, conditions, and funding for educational services and solutions. Execution of this Consortium Agreement is a requirement under the Funding Contract. While this Consortium Agreement and the Funding Contract are separate agreements, certain terms and conditions from the Funding Contract may be referenced or incorporated within this Agreement. In the event of any conflict between this Agreement and the Funding Contract, the terms and conditions of the Funding Contract shall take precedence.

3.13. Home Institution: The institution that is the primary degree-grantor.

3.14. Host Institution: The institution that provides education to students that partially fulfills degree program requirements but is not the primary degree-grantor.

3.15. Intellectual Property: Any and all patents, copyrights, trademarks, trade secrets, course materials, curriculum designs, teaching methods, and other intellectual property rights.

3.16. Intellectual Skills: General education courses taught by USNCC comprised of English 101 and Math 101, and other courses that may be developed and taught by the USNCC in the General Education area. The Home Institution shall evaluate and articulate these courses in accordance with institutional transfer credit policies.

3.17. Joint Services Transcript (JST): An official education transcript tool for documenting the recommended college credits for professional military education, training courses, and occupational experiences of Service Members across the services. The JST incorporates data from documents such as the Army/ACE Registry Transcript System, the Sailor/Marine ACE Registry Transcript System, the Community College of the Air Force transcript, and the Coast Guard Institute transcript.

3.18. Naval Studies Certificate: USNCC-taught certificate program comprised of five courses, totaling 15 semester credit hours. These courses are: Naval Ethics and Leadership, Modern Naval History, Naval Force Design and Concepts, Civil/Military Organization and Policies, and Introduction to the Geopolitical Environment (capstone).

3.19. Naval Studies Courses: Courses taught by the USNCC that are a part of the Naval Studies Certificate.

3.20. Other USNCC Courses: Courses that USNCC may develop that do not fit into the umbrella of Naval Studies courses and/or Intellectual Skills courses. USNCC is focused on developing and teaching courses that it is especially qualified to teach, and leveraging Partner Institutions for their expertise.

3.21. Partner Institution (PI): Partner University or College that is participating in the Consortium Agreement.

3.22. PI-Led: A designation that may be made to the consortium Program Plan to indicate a version of the program in which the PI is the primary associate degree grantor, and the USNCC courses and offerings shall be articulated as designated.

3.23. Professional Certificate(s): Certificate program(s) taught by Partner Institution, which is fully embedded in the Consortium Program or offered standalone.

3.24. Residency: For the purposes of this Agreement, residency means the minimum number of credit hours that must be earned directly from an institution to qualify for graduation, as opposed to transfer credits or credits earned at other institutions. This requirement does not refer to physical presence at the institution.

3.25. Signing Date: The date when this Agreement is signed.

3.26. Teaching Institution: The institution that is teaching a course to the student at that time.

3.27. Teach Out: If a student loses eligibility to participate in the USNCC due to separation from the service, or other reason, the Partner Institution will allow the student to continue or join its version of the program with no loss of credit, consistent with the Program Plans outlined in this Agreement, presuming the student maintains eligibility at the Partner Institution, consistent with all Partner Institution policies.

3.28. Transitioning Consortium Student (TCS): Transitioning Consortium Student (or TCS) (formerly referred to as teach out), Any student enrolled in a consortium program through USNCC who loses eligibility for enrollment through USNCC (e.g., separation from military service), but was previously accepted by or admitted to Home Institution prior to loss of USNCC eligibility, and who remains in good standing at Home Institution shall continue to receive the specified benefits related to the Consortium Program contemplated by this Consortium Agreement, except students shall be solely responsible for payment of all tuition and fees.

3.29. USNCC: U.S. Naval Community College, which is initiating this Consortium Agreement.

3.30. USNCC Consortium Students: Sailors, Marines, Coast Guard, and other personnel who have been accepted into USNCC and participate in a USNCC Consortium Program Plan.

3.31. USNCC-Led: A designation that may be made to the consortium Program Plan to indicate a version of the program in which USNCC is the primary associate degree grantor, and the Partner Institution offers the Professional Certificate and additional program courses as designated.

4. OVERVIEW

4.1. By entering into this bilateral Consortium Agreement, USNCC and the Partner Institution affirm that each has conducted appropriate institutional review and determined the following:

4.1.1. The Partner Institution: (1) is institutionally accredited by an accreditor recognized by the U.S. Department of Education; (2) offers at least one accredited associate degree and one accredited Professional Certificate; (3) is authorized to enroll online students in all 50 states; and (4) is in good standing with the Department of Defense and is an approved institution under the DoD Tuition Assistance (TA) Program in accordance with all applicable Department of Defense regulations (specifically DoDI 1322.25) and the DoD Voluntary Education Partnership Memorandum of Understanding.

4.1.2. Each institution is in good standing with all applicable regulatory and accrediting bodies.

4.1.3. Credits awarded by each institution have been reviewed and determined to be eligible for transfer under applicable articulation agreements.

4.1.4. Faculty teaching courses at each institution meet minimal requirements at each institution.

4.2. The parties agree to collaborate in good faith to maintain academic integrity and, consistent with accreditation and regulatory requirements, to enhance the quality of their respective academic programs.

4.3. Each institution shall ensure that the design and delivery of its online courses follow research-based practices for effective asynchronous instruction.

4.4. Each institution shall maintain its own academic standards and expectations for students enrolled in its courses, programs, Professional Certificates, and degrees.

4.5. The parties commit to facilitating the transfer of credits applicable to associate degree programs in alignment with their shared mission and goals.

4.6. This Agreement applies to the Consortium Programs described in the attached Consortium Program Plan(s).

4.7. Each institution affirms that it will allocate the resources—including appropriate technology, faculty, and staff—necessary to support the delivery of Consortium Programs in accordance with institutional mission, accreditation standards, and commitments to student success.

4.8. Document Hierarchy and Interpretation

4.8.1. In the event of a conflict between this Agreement and any Addendum, the terms of this Agreement shall govern unless an Addendum expressly states otherwise.

4.8.2. In the event of a conflict between Addendum, the most recently executed Addendum shall govern.

4.8.3. The parties shall interpret this Agreement in a manner that supports the effective and successful delivery of educational services to USNCC Consortium Students.

5.PARTNER INSTITUTION (PI) LED PROGRAMS

5.1. The parties shall jointly develop a Consortium Program Plan for each Partner Institution program offering. Each Consortium Program Plan shall be incorporated as Addendum 1 to this Agreement.

5.2. Each Consortium Program Plan shall describe:

- (a) the program structure;
- (b) required courses and credit hours;
- (c) applicable bachelor's degree pathways; and
- (d) any fully embedded or standalone Professional Certificate(s) in the relevant concentration area available to USNCC Consortium Students.

Each Consortium Program Plan constitutes Addendum 1. Subsequent Program Plans shall be named 1.1, 1.2, and so forth.

5.3. An accompanying Articulation Agreement shall specify which Home Institution degree requirements are satisfied by USNCC-taught courses and by other accepted credit sources, including ACE recommendations, CLEP, and comparable mechanisms. It shall further include any pertinent policies for admission or other policies necessary to the implementation of the agreement. The Articulation Agreement constitutes Addendum 2, with subsequent updates named 2.2, 2.3, and so forth.

5.4. The Articulation Agreement is a comprehensive document and should also identify any teach-out provisions applicable to Partner Institution–led programs, including the manner in which credits earned through USNCC will be applied in the event of a student teach-out.

5.5. Either party may request review of the Consortium Program Plan(s) or Articulation Agreement(s) at any time. Revisions require mutual written agreement. At a minimum, the Consortium Program Plan(s) shall be reviewed annually. Upon approval of revisions, updated and executed Addendum(s) 1 and 1.1 shall replace prior versions as additional addendums.

5.6. The Partner Institution shall serve as the primary degree-granting institution for the associate degree(s) and/or Professional Certificate(s) as outlined in the Consortium Program Plan(s). USNCC shall serve as the primary credential-granting institution for the embedded and standalone Naval Studies Certificate.

5.7. USNCC shall offer and award the Naval Studies Certificate regardless of accreditation status. The Partner Institution shall evaluate and articulate USNCC Naval Studies courses in accordance with its institutional transfer credit policies and ACE recommendations. These courses shall be included in Addendum 2 and updated pursuant to Section 5.3.

5.8. USNCC shall provide Intellectual Skills courses and may provide Other Courses for which it possesses particular subject-matter expertise. The Partner Institution shall evaluate and articulate these courses—including English 101, Math 101, and other developed courses—in accordance with its transfer credit policies and ACE credit recommendations. These courses shall be included in Addendum 2 and updated pursuant to Section 5.3.

5.9 USNCC Consortium students shall be entitled to remain under the Consortium Program Plan and catalog year in effect at the time of their enrollment at the Partner Institution, provided the student maintains continuous enrollment and good academic standing. Students who meet these conditions shall not be required to transition to a subsequently revised program plan or catalog year without just cause.

6. USNCC-LED PROGRAMS

6.1. Upon achieving accreditation and determining readiness to develop a USNCC-led Associate of Naval Studies/Sciences, the parties shall jointly develop a Consortium Program Plan for such program. The Consortium Program Plan shall be incorporated as Attachment 1 to this Agreement.

6.2. Each Consortium Program Plan shall describe:

- (a) the program structure;
- (b) required courses and credit hours;
- (c) all USNCC-taught courses comprising the program; and
- (d) Partner Institution courses, if any, that will articulate into the program.
- (e) any policies that are pertinent to articulation of courses.

Each Consortium Program Plan constitutes Attachment 1.

6.3. Where mutually agreed upon, the Consortium Program Plan may also identify bachelor's degree pathways at the Partner Institution to which the USNCC-led associate degree may articulate.

6.4. The Consortium Program Plan may include a teach-out plan identifying how credits earned by students will transfer to corresponding programs at the Partner Institution in the event that a teach-out becomes necessary.

6.5. Either party may request review of the Consortium Program Plan(s) at any time. Revisions require mutual written agreement. At minimum, the Consortium Program Plan(s) shall be reviewed annually. Upon approval of revisions, the updated and executed Addendum(s) 1.1, 1.2 and so on, which shall replace prior versions.

6.6. Unless otherwise mutually agreed in writing, USNCC shall serve as the primary degree-granting institution for the associate degree(s) and/or Professional Certificate(s) offered as USNCC-led programs.

6.7 After achieving accreditation (Post-Degree Granting Status), the USNCC *may* elect to phase in USNCC-led versions of the concentration-focused associate degree programs currently granted by the Partner Institution. Under such a model, USNCC would serve as the primary degree-granting institution, and the Partner Institution would continue to offer the embedded and stand-alone Professional Certificate(s) and related courses.

If USNCC elects to phase in such programs, the following shall occur:

6.7.1. USNCC and the Partner Institution shall jointly develop a mutually agreed-upon USNCC-led Consortium Program Plan, which shall:

- a) Support delivery of the USNCC-led associate degree and Partner Institution delivery of the Professional Certificate(s) and related courses.
- b) Provide a clear process for continuity of program delivery ("teach-out") for students who separate from USNCC and seek to transfer to the Partner Institution.
- c) Document articulation of Partner Institution courses that satisfy USNCC degree requirements.
- d) Document articulation of USNCC courses, JST, and other evaluated military training that the Partner Institution will award toward its own programs for teach-out purposes.

6.7.2 The USNCC-led Consortium Program Plan and its associated Articulation Agreement shall be incorporated into this Agreement as Attachment 1 and Attachment 2, respectively.

6.7.3 Student Enrollment and Transition. If USNCC launches a USNCC-led Consortium Program Plan:

- a) New students will enroll directly into the USNCC-led degree program.
- b) Existing USNCC Consortium Students shall continue under the Partner Institution Program Plan but may be offered the option to transition to the USNCC-led degree program, as appropriate.

6.7.4 Transition Timeline and Process.

- a) USNCC shall provide the Partner Institution with at least 180 days written notice prior to enrolling new students into a USNCC-led Associate of Naval Studies/Sciences or concentration-focused program.
- b) Within 60 days of such notification, the parties shall collaborate to update this Agreement to include the new USNCC-led Consortium Program Plan.

7. ROLES, RESPONSIBILITIES, AND POLICIES

7.1.1 Home Institution. The Home Institution, as the primary degree-granting institution, shall:

- a) Provide degree advising, degree audits, and confer degrees.
- b) Maintain and enforce academic policies and requirements related to degree completion.
- c) Maintain all required institutional and programmatic/specialized accreditation.
- d) Administer Title IV funding, as applicable, and share necessary financial aid policies with USNCC for coordination purposes. (*Note: USNCC does not offer Title IV aid.*)
- e) Conduct program assessment and share relevant outcomes with the Partner Institution (Host Institution).

7.1.2 Home and Host Institutions (Shared Responsibilities). Each institution shall:

- a) Maintain its respective accreditation.
- b) Conduct assessment of its own courses and programs.
- c) Adhere to institutional academic standards and policies.
- d) Employ qualified faculty to deliver instruction.
- e) Provide academic and student support services (e.g., library resources, advising, tutoring) comparable to those offered to their other student populations.
- f) Exchange data, consistent with applicable laws and agreements, to support administration and assessment of the Consortium Program.

7.1.3 Teaching Institution. The Teaching Institution shall:

- a) Deliver instruction using qualified faculty.
- b) Offer high-quality courses consistent with best practices in online instruction.
- c) Provide all instructional materials, LMS access, and resources required for course completion.
- d) Require students to comply with academic, conduct, and related institutional policies.

e) Provide academic and support services equivalent to those offered to its general student population (unless otherwise specified).

7.1.4 Partner Institution. The Partner Institution shall:

- a) Disclose any residency requirements for the student's program of study in the Consortium Agreement and to the student no later than program enrollment.
- b) Provide an Evaluated Education Plan (EEP) for students with prior coursework or military learning, identifying transfer credits and their applicability. The EEP should be completed within 15 calendar days, and no later than 30 business days, after admission and receipt of all required transcripts.
- c) Provide a revised EEP to the student and USNCC within 15 calendar days if a Service Member changes educational goals or majors (with USNCC approval).
- d) Review courses taken by USNCC Consortium Students at other accredited USNCC partner institutions, consistent with this Agreement.
- e) Ensure that degree requirements in effect at a student's enrollment remain valid for at least 150% of the normal program length, provided the student remains in good standing and maintains continuous enrollment or an approved leave of absence
- f) Adjustments that detrimentally impact the student (e.g. requiring additional courses or earn additional credits) may be made only when:
 - Changes take effect at least two years after notification; or
 - Courses/programs are discontinued or changed due to state or accreditor mandate, in which case the institution shall provide low-or no-cost substitutions that must not impede with timely graduation.
- g) Ensure that degree requirements and the EEP meet applicable credentialing requirements. Partner Institution shall disclose any additional conditions required for licensure or certification (e.g., exams, experience, state-specific limitations).
- h) Provide robust student support consistent with the Funding Contract and, at minimum, equivalent to support provided to its other students.
- i) Maintain system uptime, data availability, and accurate data exchange consistent with the standards outlined in the Funding Contract.

7.2 Policies

7.2.1 PI-Led Concentration-Focused Programs. To participate, students must be admitted through USNCC, accepted into an approved Consortium Program, and enrolled in classes.

7.2.2 USNCC-led Associate of Naval Studies/Sciences. Students must be admitted to the USNCC degree program and, at minimum, accepted into a Non-Degree/Non-Program status at the Partner Institution (or a specific program designated for teach-out purposes).

7.2.2.a USNCC-Led Subject-Specific Programs. Students must be admitted and enrolled in a USNCC Consortium Program and concurrently accepted into at least a Professional Certificate program at the Partner Institution, consistent with the USNCC-led Consortium Program Plan.

7.2.3 Transition If/When USNCC Launches a USNCC-Led subject specific Program

- a) New and readmitted students will be admitted into the USNCC-led version of the program.
- b) Continuing students will remain in the PI-led version unless they elect to transition into the USNCC-led program, subject to case-by-case approval.

7.2.4 Transitioning Consortium Students (Loss of USNCC Eligibility). Students who lose eligibility for USNCC enrollment (e.g., separation from military service) but were previously admitted to the Home Institution become “Transitioning Consortium Students.” They shall retain Consortium-related benefits except that they are responsible for all tuition, fees, and materials.

7.2.4.a Teach-Out Responsibility. The Partner Institution shall provide teach-out services for Transitioning Consortium Students who elect to continue their academic program, consistent with applicable institutional policies.

7.2.5 Program Eligibility. Students must comply with USNCC program policies to remain eligible under the Consortium Agreement.

7.2.6 Home Institution Policies. Home Institution policies govern degree requirements, degree award, and continued enrollment in that institution’s courses.

7.2.7 Academic Integrity. USNCC Consortium Students must comply with academic integrity and code of conduct policies at both the Home Institution and Teaching Institution.

7.3 Graduation Requirements. Nothing in this Consortium Agreement alters or amends the admission, academic, or graduation requirements that the Home Institution may establish and amend from time to time.

8. CREDIT ACCEPTANCE AGREEMENT

8.1 USNCC Coursework and Program Requirements

8.1.1 All USNCC Consortium Students shall make progress toward the Naval Studies Certificate and complete required Intellectual Skills courses as directed by USNCC.

8.1.2 USNCC may modify, update, or replace Naval Studies Certificate and Intellectual Skills courses at its sole discretion.

8.2 Updates to Consortium Program Plans and Articulation Agreements

8.2.1 Substantive USNCC course changes will be reflected in mutually agreed revisions to applicable Consortium Program Plans (Addendum(s) 1.1, 1.2, and so on) and Articulation Agreements (Addendum(s) 2.2, 2.3, and so on), including those that are either (PI-Led) or (USNCC-Led).

8.2.2 USNCC may develop additional courses for credit consideration by the Partner Institution.

8.3 Residency Requirements

8.3.1 The Partner Institution shall waive residency requirements for USNCC Consortium Students or count USNCC-earned credits toward fulfilling such requirements.

8.3.2 If residency requirements cannot be waived, no more than 16 semester credit hours (or equivalent) may be required to be taken at the Home Institution.

8.4 Articulation and Application of USNCC Credit

8.4.1 The Home Institution shall articulate USNCC-delivered courses into the student's degree program, in accordance with applicable Articulation Agreements (Attachments 2, 2.1., 2.1, etc.) for PI-Led or USNCC-Led programs, provided the student earns a passing grade of C or higher.

8.4.2 The Home Institution shall award credit for Naval Studies and Intellectual Skills courses as outlined in the relevant Consortium Program Plans and Articulation Agreements.

8.4.3 The Partner Institution shall apply articulated credits first to General Education and/or Major Requirements whenever possible, consistent with the student's designated program of study.

8.5 Transfer Credit and Prior Learning Evaluation. The Partner Institution shall evaluate and award transfer credit in accordance with the following:

8.5.1 Military and Prior Learning Credit

a) Provide processes to evaluate specialized military training, occupational experience, and prior learning where relevant to the student's degree program.

b) Use the ACE Guide to determine credit recommendations for military learning; award credit consistent with ACE recommendations as documented on JST or listed on the transcript by USNCC.

8.5.2 Credit from Other Accredited Institutions

- c) Evaluate transfer credit from other accredited institutions consistent with the Joint Statement on the Transfer and Award of Credit (AACRAO/ACE/CHEA).
- d) Award credit to the extent practicable within institutional mission, accreditation standards, and academic policies.

8.5.3 Institutional Decision Authority

- e) The Partner Institution retains authority to determine the amount of transfer or experiential learning credit accepted and how such credit applies to the Consortium Program Plan.
- f) Once the Partner Institution has evaluated a specific military or experiential learning activity for a program, it may reuse the evaluation for future determinations unless course content has changed.

8.5.4 Transparency and Disclosure

- g) Disclose institutional policies governing transfer credit and credit for prior learning (including military credit) before or at the time of a Service Member's enrollment.

8.5.5 Application of Awarded Credit

- h) When permitted under institutional policy, the Partner Institution may apply awarded credit to: Replace a required major course; Satisfy an optional major course; Apply as a general elective; Fulfill a basic degree requirement; or waive a prerequisite.

8.6 Ongoing Exchange of Course Information

The USNCC and Partner Institution shall provide each other with course equivalency information and updates on a continuing basis to ensure accurate credit articulation.

8.7 Program-Specific Articulation Agreements

Additional program-specific articulation agreements may be developed for particular programs or pathways. All such agreements shall be consistent with the terms and intent of this overarching Consortium Agreement.

9. ASSESSMENT AND OVERSIGHT

9.1 Data and Reporting Requirements. Both parties shall provide information and data necessary to satisfy their respective accreditation requirements, including but not limited to:

9.1.1 Program and Course Assessment:

- a) Assessment of learning outcomes for courses and programs in which USNCC Consortium Students are enrolled.
- b) Provision of program assessment and outcome data for shared Consortium Program

Plans and Professional Certificates, including course evaluation surveys.

c) Comprehensive program assessments shall be completed at least every 3–5 years.

9.1.2 Faculty Qualifications:

a) Documentation of faculty credentials and qualifications.

b) Faculty teaching Consortium Program courses shall be academically or professionally qualified, generally holding a graduate-level degree in a related field, or an undergraduate degree plus at least 18 credits in a related field; exceptions may be made for highly professionally qualified staff.

c) Faculty qualifications must comply with both institutions' accreditation standards and be reflected in institutional policies.

d) All faculty teaching online courses shall be appropriately trained or certified in online instruction.

9.1.3 Supplemental Resources and Support Services:

Evaluation of library access, advising, tutoring, and other student support services.

9.1.4 Additional Data Requests:

USNCC may request additional information beyond annual reporting requirements as necessary to meet the needs of the Naval Services, accreditation, or regulatory obligations.

10. ADMISSIONS PROCESSING

10.1 USNCC Eligibility. USNCC has sole authority to determine a student's initial eligibility to participate in programs under this Consortium Agreement. Students must be admitted to USNCC before applying to or enrolling in the Partner Institution. Students must be admitted to the Partner Institution in Consortium Program of study order to participate in a PI-Led program.

10.2 Home Institution Admission and Academic Requirements. The Home Institution and its academic units retain responsibility for establishing and administering admission and academic requirements for specific degree(s) or Professional Certificate(s).

10.3 Consideration of USNCC Students. The Home Institution shall evaluate USNCC student applications in accordance with its standard admission criteria and policies, while favorably recognizing USNCC's certification of a High School Diploma or equivalent without requiring a certified copy.

10.4 Ability-to-Benefit Exceptions. Consistent with Home Institution policy, enlisted Service Members of the Navy, Marine Corps, or Coast Guard who are enrolled in USNCC but do not

hold a high school diploma or equivalent may participate in USNCC certificate and degree programs based on an ability-to-benefit or similar standard.

11. FUTURE COLLABORATIVE CONSORTIUM AGREEMENT

11.1 Association Consortia: Both parties agree to work in good faith to enter into a joint or collaborative “Association Consortia” with other accredited colleges and universities partnering with USNCC. The purpose of such consortia is to support the articulation of courses and programs across institutions, furthering USNCC students’ continued education.

11.2 Additional Programs: The Partner Institution and USNCC may develop additional degree(s) or Professional Certificate(s) for students enrolling in new programs. All such programs shall be consistent with the terms of this overarching Consortium Agreement. The corresponding Consortium Program Plans and Articulation Agreements shall be included as Addendums 3 and 4, respectively.

11.3 Four-Year Transfer Pathways: Both parties agree to collaborate in future four-year transfer pathway agreements. These agreements may include 2+2 or program-to-program transfer arrangements from USNCC two-year programs to bachelor's degree pathways, with the goal of minimizing loss of credit during transfer.

11.3.1 Development Process:

- a) Establish a joint planning committee.
- b) Conduct regular progress reviews.
- c) Consult stakeholders as required.
- d) Follow an agreed-upon timeline for implementation.

11.3.2 Integration Requirements

- a) Ensure technology system compatibility.
- b) Implement data sharing protocols.
- c) Coordinate student services.
- d) Align academic programs across institutions.

11.3.3 Reverse Transfer Credit: In addition to forward transfer pathways, the parties agree to collaborate on Reverse Transfer Credit opportunities that allow credits earned at the Partner Institution or other consortia institutions to be applied toward completion of USNCC associate degrees or certificates. Policies and procedures for reverse transfer shall be included in relevant Articulation Agreements and implemented in accordance with FERPA and institutional transfer credit standards.

11.4 Addition of Programs

11.4.1 New degrees, certificates, or other academic programs may be added through mutually executed addendums, using the format of Addendum(s) 3 (Pre-Accreditation) or

4 (Post-Degree Granting), without modifying this Agreement.

11.4.2 Each addendum shall be signed by:

- a) USNCC: Provost or designee.
- b) Partner Institution: Academic Dean (or equivalent) of the relevant program and an authorized institutional signatory.

11.4.3 Upon execution by all required signatories, such addendum(s) shall become part of this Agreement.

12. GENERAL PROVISIONS

12.1 Term: This Consortium Agreement shall commence on the Signing Date and remain in effect for seven (7) years unless earlier terminated in accordance with Section 12.7.

12.2 Notification of Changes: Each party shall promptly notify the other of any adverse changes in its programs, accreditation status, or state licensure in writing within 30 business days.

12.2.1 Program Review, Updates, and Approval: Each Party shall review the Program Plan and articulation agreements on an annual basis, or as needed, to address the addition of new programs or changes to existing programs. This review shall be conducted by the Academic Deans of the participating institutions and include the USNCC Consortia Department for coordination, review, and tracking. All updates to the Program Plan and articulation agreements require approval by the Academic Deans and Consortia Departments. Upon approval, the updated documents shall be executed by all Parties and appended to this Agreement.

12.3 Non-Discrimination Compliance: USNCC and the Partner Institution shall comply with:

- Section 504 of the Rehabilitation Act of 1973,
- Title VII of the Civil Rights Act of 1964,
- Title IX of the Education Amendments of 1972, and
- The Age Discrimination Act of 1975.
- These laws prohibit discrimination based on disability, race, sex, and age, respectively.

12.4 Liability and Indemnification: Each party is responsible for its own negligent acts or omissions, including those of its agents, employees, or contractors. Each party agrees to defend itself and pay any judgments, damages, or costs arising from its own negligence. Nothing in this Agreement shall transfer or impute such responsibility from one party to the other.

12.5 Data Exchange: All student data exchanges required under this Agreement, or pursuant to the Partner Institution's separate funding contract with USNCC, shall comply with:

- Family Educational Rights and Privacy Act (FERPA), 20 U.S.C. §1232g, 34 C.F.R. Part 99,
- Health Insurance Portability and Accountability Act of 1996 (HIPAA), 45 C.F.R. Parts 160 & 164, and
- Gramm-Leach-Bliley Act, Public Law No. 106-102,
as well as all other applicable federal and state privacy laws.

12.6 Non-Exclusivity: This Agreement is non-exclusive. Either party may enter into similar agreements with other institutions.

12.7 Entire Agreement and Amendments: This Agreement, including all attachments and exhibits, constitutes the entire agreement between the parties and supersedes all prior written or oral agreements relating to its subject matter. No modification shall be effective unless in writing and signed by both parties.

12.8 Termination

12.8.1 Termination for Cause or Conflict

a) If the Agreement conflicts with regulatory requirements, the affected party shall notify the other and allow an opportunity to cure the defect. If the defect cannot be cured, the Agreement terminates immediately upon notice.

b) Either party may terminate for a material breach by the other, effective at the later of: (i) the end of the current academic semester, or (ii) 90 days after written notice of breach, provided the breaching party has an opportunity to cure. Termination is nullified if the breach is cured within this period.

c) Either party may terminate for any reason or no reason, effective one year after written notice to the other party.

12.8.2 Post-Termination

Upon expiration or termination for any reason, USNCC Consortium Students previously accepted or admitted to the Home Institution shall continue to receive the benefits outlined in this Agreement. Students shall remain responsible for payment of tuition and fees if they continue their degree at the Home Institution after expiration or termination.

13. MISCELLANEOUS

13.1 Severability: If any provision of this Consortium Agreement is held illegal, unenforceable, or in conflict with applicable law by a court of competent jurisdiction, that provision shall be deemed severed, and the validity and enforceability of the remaining provisions shall not be affected.

13.2 Governing Law: This Consortium Agreement shall be governed by and construed in accordance with Federal law applicable to contracts made and enforced wholly within Federal court.

13.3 Notices: All notices or written communications relating to termination, expiration, or any legal matter under this Agreement shall be effective upon receipt. Notices must be sent in writing via courier, reputable overnight delivery service, or certified mail, return receipt requested, to:

- USNCC: 3094 Upshur Ave, Quantico, VA 22134
- Partner Institution: [Insert Address]

An additional copy shall be provided to the other institution's General Counsel.

13.4 Amendments: This Consortium Agreement may only be modified or amended by a written addendum signed by both USNCC and the Partner Institution.

13.5 Compliance with Federal Law: This Agreement is subject at all times to Federal law and the rules, guidelines, and regulations of the Department of Defense. Any conflicts between this Agreement and such federal laws, rules, guidelines, or regulations shall be resolved in favor of the federal authority.

13.6 Official Communications: Official communications between USNCC and the Partner Institution regarding this Agreement shall occur via email or telephone unless otherwise specified.

13.7 Relationship to IDIQ Contracts: Changes to this Agreement shall not modify or affect the terms and conditions of USNCC Educational Service for multiple award IDIQ contracts and associated task orders.

13.8 Signatories: This Agreement shall be executed by the USNCC President and the appropriate authorized signatory from the Partner Institution.

The rest of this page is intentionally left blank. Signature page to follow.

IN WITNESS WHEREOF, the parties have caused this agreement to be duly executed intending to be bound thereby.

APPROVED:

UNITED STATES NAVAL COMMUNITY COLLEGE

By (authorized signature)

Title

Date

PARTNER INSTITUTION SIGNATORY

By (authorized signature)

Title

Date

PARTNER INSTITUTION NAME HERE OFFICIAL MAILING ADDRESS

PI Name

PI Department Name Here

Attention To: PI Identified Responsible Here

PI Full Mailing Address Here